

## 20STCV11677 20STCV11677

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Case Number: 20STCV11677 Hearing Date: September 21, 2026 Dept: 6

### CASE

NAME: Nobia

Joyce v. Shawn M. Millner, et al.

### Plaintiff's

Motion to Declare Pro Per Defendant Laurence Todd a Vexatious Litigant

### TENTATIVE

### RULING

The Court GRANTS Plaintiff's motion to declare pro per Defendant Laurence Todd a vexatious litigant. Plaintiff is to submit a proposed Order within 5 calendar days.

Plaintiff is ordered to give notice of the Court's ruling within five calendar days of this order.

### BACKGROUND

This is a quiet title action. On March 20, 2020, plaintiff Nobia Joyce (Plaintiff) filed this action against defendants Shawn M. Millner, the Shawn Marie Millner Revocable Trust (collectively, Millner), Laurence Todd (Todd) (Millner and Todd may be collectively referred to as Defendants), and Does 1 through 20, alleging causes of action for quiet title, partition, declaratory relief, and ejectment and damages.

On November 29, 2022, Defendants filed a cross-complaint against Plaintiff, Stephen R. Golden, Stephen R. Golden & Associates, P.C., and

Does 1 through 20. On February 2, 2024, Defendants filed the Second Amended Cross-Complaint (SACC) against the same parties, alleging causes of action for breach of the July 5, 2018 Settlement Agreement, breach of the covenant of good faith of the July 5, 2018 Settlement Agreement, fraud (No. 1), breach of the August 2018 Co-signor agreement, breach of the covenant of good faith breach [sic] of the August 2018 Co-tenant [sic] agreement, fraud (No. 2), assault, battery, false imprisonment, negligent infliction of emotional distress, intentional infliction of emotional distress, slander of title, fraud (No. 3), invasion of privacy, unjust enrichment, comparative indemnity, apportionment of fault, breach of the May 2023 Settlement Agreement, and breach of the covenant of good faith of the May 2023 Settlement Agreement.

On May 29, 2024, Defendants filed the operative Third Amended Cross-Complaint (TACC) against Plaintiff, Stephen R. Golden, Stephen R. Golden & Associates, P.C., and Does 1 through 20, alleging causes of action for battery, intentional infliction of emotional distress, slander of title, breach of contract, invasion of privacy, and unjust enrichment. On August 27, 2024, the Court dismissed cross-defendants Stephen R. Golden and Stephen R. Golden & Associates, P.C., from the TACC without prejudice.

On August 28, 2024, Plaintiff dismissed the First and Second Causes of Action for quiet title and partition as to Defendant Todd without prejudice.

On March 5, 2026, Plaintiff dismissed Todd from the Complaint.

From March 17, 2026, through March 26, 2026, a jury trial was held. The jury issued a verdict in favor of Plaintiff on her ejectment claim and against Defendant Millner. The jury also issued a verdict in favor of Plaintiff on all claims in the TACC and against Defendants.

On April 22, 2026, the Court entered judgment following the jury trial.

On August 19, 2026, Plaintiff moved to declare pro per Defendant Laurence Todd a vexatious litigant. On September 3, 2026, Millner opposed the motion. On September 8, 2026, Todd opposed the motion. On September 10, 2026, Plaintiff replied.

LEGAL

## STANDARD

(a)

“Litigation” means any civil action or proceeding, commenced, maintained or pending in any state or federal court.

(b)

“Vexatious litigant” means a person who does any of the following:

(1)

In the immediately preceding seven-year period has commenced, prosecuted, or maintained in propria persona at least five litigations other than in a small claims court that have been (i) finally determined adversely to the person or (ii) unjustifiably permitted to remain pending at least two years without having been brought to trial or hearing.

(2)

After a litigation has been finally determined against the person, repeatedly relitigates or attempts to relitigate, in propria persona, either (i) the validity of the determination against the same defendant or defendants as to whom the litigation was finally determined or (ii) the cause of action, claim, controversy, or any of the issues of fact or law, determined or concluded by the final determination against the same defendant or defendants as to whom the litigation was finally determined.

(3)

In any litigation while acting in propria persona, repeatedly files unmeritorious motions, pleadings, or other papers, conducts unnecessary discovery, or engages in other tactics that are frivolous or solely intended to cause unnecessary delay.

...

(Code Civ.

Proc., § 391, subds. (a)-(b)(3).)

## OBJECTIONS

The Court

SUSTAINS Plaintiff's objection to Millner's opposition, as Millner has no

standing with respect to the issue of Todd being declared a vexatious litigant. (See *Teal v. Superior Court* (2014) 60 Cal.4th 595, 599; Code Civ. Proc., § 367.)

## REQUESTS FOR JUDICIAL NOTICE

### The Court GRANTS

Plaintiff's requests for judicial notice, except as to Item 1, as deposition transcripts are not court records or other government agency records. (See Evid. Code, § 452, subds. (a)-(d).) Plaintiff's reliance on Code of Civil Procedure section 2025.620, subdivision (b), for Todd's deposition transcript excerpts is unpersuasive because it says nothing about permitting a court to take judicial notice of a deposition transcript. (See Code Civ. Proc., § 2025.620, subd. (b).) The Court otherwise takes judicial notice only as to "the existence, content and authenticity of public records and other specified documents" and the legal effect of the documents' language when that effect is clear, it does not take judicial notice of the truth of the factual matters asserted in those documents. (*Dominguez v. Bonta* (2022) 87 Cal.App.5th 389, 400; *Fontenot v. Wells Fargo Bank, N.A.* (2011) 198 Cal.App.4th 256, 265.)

## DISCUSSION

### Summary of Arguments

#### Plaintiff

moves under Code of Civil Procedure section 391, subdivisions (b)(2) and (b)(3), to declare Defendant Laurence Todd a vexatious litigant, arguing he repeatedly attempts to relitigate the ownership and possession of the family condominium after those issues were finally determined against him at trial and affirmed on appeal. Plaintiff contends Todd has filed more than 20 meritless motions, writs, and appeals — including repeated motions to disqualify the trial judge and to stay or undo the partition — each denied. Plaintiff asserts that, after years of testifying he had no interest in the condominium, Todd now asserts an "unadjudicated ownership interest" and recorded a deed and abstract of judgment that cloud title and obstruct the court-ordered sale. Plaintiff requests that the Court regulate Todd's conduct under section 391.

In

opposition, Todd, appearing specially, argues the court lacks personal and subject-matter jurisdiction because Plaintiff twice voluntarily dismissed him and because his cross-complaint is stayed on active appeal under Code of Civil Procedure section 916, subdivision (a). Todd contends that losing motions are not vexatious, that joining motions drafted by co-defendant's counsel gave each a colorable basis, and that his two dismissals prove his defenses had merit. Todd argues a recorded quitclaim deed is an administrative, non-litigation instrument outside Code of Civil Procedure section 391, subdivision (b)(3), and that recording an abstract of judgment is a privileged, non-discretionary exercise of his rights as a judgment creditor enforcing a final cost judgment. Todd asks the Court to deny the motion.

In reply, Plaintiff contends that Todd's opposition fails to justify a single one of his many filings on the merits. Plaintiff argues the appeal does not divest the Court because the vexatious-litigant motion is not embraced in or affected by the appealed judgment under Code of Civil Procedure section 916, subdivision (a). Plaintiff contends attorney involvement does not immunize meritless filings, citing authority that a litigant may be declared vexatious even when using an attorney. Plaintiff argues that section 391, subdivision (b)(1), expressly permits consideration of filings in more than one case. Plaintiff maintains the quitclaim deed and abstract convey half of Todd's claimed "unadjudicated interest," not merely his costs, and represent his latest attempt to relitigate settled matters and thwart the sale.

#### Analysis

The Court finds Plaintiff's motion persuasive. First, the Court finds that none of the currently pending appeals concern whether Todd is declared a vexatious litigant because it is not a matter "embraced in or affected by the appealed judgment..." (Henry M. Lee L. Corp. v. Superior Ct. (2012) 204 Cal.App.4th 1375, 1383; see LAOSD Asbestos Cases (2018) 28 Cal.App.5th 862, 871-872.) The current pending appeals concern the Court's January 29, 2026 minute order correcting the interlocutory judgment to correct Millner's name and the April 22, 2026 judgment from the jury trial verdict; none of them concern Todd being declared a vexatious litigant. (See Notice of Appeal (1/29/26); Notice of Appeal (6/17/26); Notice of Appeal (6/18/26).) The Court also notes no bond or undertaking having been posted to stay enforcement of Plaintiff's money judgment. (Code Civ. Proc., § 917.1, subd. (a).) The Court further finds Todd a party over which the Court retains jurisdiction given his

appeal from the cross-complaint of which he is one of the cross-complainants. (See generally TACC; Judgment (4/22/26); Notice of Appeal (6/18/26); Todd Decl., ¶ 4.) Todd also invokes his status as a self-described judgment creditor, which would have to be based on his dismissal from the Complaint and his subsequently claimed costs. (See Order re: Court Ruling (7/15/26); Opp., 3:13-21.)

Second, Todd's dismissals from the Complaint and status as judgment creditor do not shield him from application of Code of Civil Procedure section 391, subdivisions (b)(2) and (b)(3), which apply to "any litigant – plaintiff or defendant." (Thompson v. Ioane (2017) 11 Cal.App.5th 1180, 1200; see Code Civ. Proc., § 391, subds. (b)(2)-(b)(3).)

Third, Todd joining some motions filed by Millner's counsel does not necessarily save him from being declared a vexatious litigant. "[W]here a party effectively conducts himself or herself in an action as a self represented [sic] litigant without the professional and ethical considerations that constrain counsel, the party's nominal engagement of an attorney will not insulate him or her from the statutory consequences of the vexatious litigant provisions." (Golin v. Allenby (2010) 190 Cal.App.4th 616, 638; see also In re Kinney (2011) 201 Cal.App.4th 951, 953 (Golin) [plaintiff business entity declared a vexatious litigant when used by attorney to evade prior declaration of him being a vexatious litigant].)

Fourth, Todd has filed multiple motions and documents with the Court that were denied, rejected, or were otherwise procedurally improper or unmeritorious. Indeed, many of the motions lacked merit given the Court's finding that Plaintiff and Millner, i.e., not Todd, each owned 50% of the real property underlying this dispute. (Golin, supra, 190 Cal.App.4th at p. 640 [Code of Civil Procedure section 391, subdivision (b)(3), "specifies neither a quantity of actions necessary to fit the bill nor a timeframe within which the actions had to have taken place in order for a party to be designated a vexatious litigant. [Citation.]"]; see also Plaintiff's Exhibits, Ex. 1, 13:16-18, 29:10-11, 89:12-25, 91:2-7, 179:11-13, 180:9-12 [deposition transcript of Defendant Lawrence Todd unequivocally stating he owns no interest in the subject property].)[1] Some of the relevant filings include the following:

1. Defendant's Written Objection to the Status of Sale of Real Property and Notice of

Unadjudicated Interest (filed 7/22/26);

2. Motion re: for  
Mistrial (filed 3/25/26);

3. Motion for  
Sanctions for Cost of Proof Discovery Sanctions Under CCP 2033.420 Against  
Plaintiff (filed 3/16/26);

4. Defendant/Cross-Complainant's  
Briefing on Why Plaintiff's Ejectment Claim Cannot Proceed and Notice of Intent  
to File a Writ of Mandate/Prohibition Pursuant to CCP 1085 and 1102 to Stay the  
Trial FSC (filed 2/13/26);

5. Notice of  
Stay of Proceedings re: Appeal (filed 2/4/26);

6. Defendants' Ex  
Parte Notice of Motion and Motion to (1) Stay and Enjoin Partition Sale; et al.  
(filed 1/27/26);

7. Notice of  
Objection to Partition Referee Brandon J. Anand (filed 10/20/25);

8. Statement of  
Disqualification (filed by Todd 8/11/25) (appellate order denying corresponding  
petition for writ of mandate issued 9/3/25);

9. Defendant's  
Objection to Orders Issued by Hon. Lynette Gridiron Winston Between July 27,  
2025 to the Present; Request for Immediate Case Transfer/Reassignment (filed  
8/11/25);

10. Objection to  
Incorrect Entry on Court's Docket Re: Application for Writ of Possession and  
Order of Possession to Nobia Joyce (filed 8/5/25);

11. Motion to  
Recuse (filed by both Defendants 7/21/25);

12. Defendant's

Opposition to Plaintiff's Application for Nunc Pro Tunc Order (filed 10/24/24);  
and

13. Defendant/Cross-Complainant

Laurence Todd's Motion for an Order of Dismissal with Prejudice as to  
Plaintiff's Causes of Actions [sic] for Quiet Title and Partition (filed  
8/30/24).

Fifth, conduct in other related proceedings may be considered, and  
conduct related to the current action "militate[s] heavily in favor" of a  
vexatious litigant declaration. (Holcomb v. U.S. Bank Nat. Assn. (2005)  
129 Cal.App.4th 1494, 1505.) Todd and Millner filed a related action against  
the partition referee, Brandon J. Anand, whom the Court appointed to effectuate  
the sale of the property per the interlocutory judgment, and the referee's assistant,  
Roger Beltran, which action was dismissed with prejudice and with an order for  
Todd and Millner to pay \$8,420.00 in attorney fees. (Plaintiff's Exhibits, Ex. 4;  
Minute Order (2/11/26) (Case No. SCLAC 25PSCV02834).) The Court finds this was  
done solely to delay enforcement of the interlocutory judgment's order to sell  
the subject property.

Sixth, Code of Civil Procedure section 391, subdivision (b)(3), is  
not limited to documents filed with the Court. It also applies to conducting  
unnecessary discovery or "engag[ing] in other tactics that are frivolous or  
solely intended to cause unnecessary delay." (Code Civ. Proc., § 391, subd.  
(b)(3).) The Court finds Todd's act of recording the quitclaim deed with the  
Los Angeles County Recorder's Office on July 27, 2026 and now claiming an  
interest in the subject property as set forth in the declaration signed on July  
20, 2026 constitutes frivolous tactics solely intended to delay enforcement of  
the interlocutory judgment's order to sell the subject property. Todd stated  
unequivocally during his deposition that he had zero ownership interest in the  
subject real property. (Plaintiff's Exhibits, Ex. 1, 13:16-18, 29:10-11,  
89:12-25, 91:2-7, 179:11-13, 180:9-12.) Todd also repeatedly represented to this  
Court that he has no ownership interest in the subject property and should not be  
a party to Plaintiff's claims. And yet, Todd's filing of the quitclaim deed purports  
to convey an interest in the subject real property to Shane Michael Taylor  
Millner. (Plaintiff's Exhibits, Ex. 8.) The only plausible explanation for  
these contradictory positions is that Todd is trying to prevent the sale of the  
subject property.

Based on the foregoing, the Court GRANTS the motion.

#### CONCLUSION

The Court GRANTS Plaintiff's motion to declare pro per Defendant Laurence Todd a vexatious litigant. Plaintiff is to submit a proposed Order within 5 calendar days.

Plaintiff is ordered to give notice of the Court's ruling within five calendar days of this order.

[1] Notwithstanding the Court's denial of Plaintiff's request for judicial notice as to excerpts from Todd's deposition transcript, it is still otherwise admissible as evidence. (See Pallack Decl., ¶ 4 and Ex. 1; Rozanova v. Uribe (2021) 68 Cal.App.5th 392, 403 [trial court may weigh evidence on a vexatious litigant motion].)